

Hillman v. Amazon.com Services LLC, 785 F.Supp.3d 59 (2025)

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United States District Court, D. Maryland.

Karen HILLMAN, et al., Plaintiffs,

v.

AMAZON.COM SERVICES LLC, Defendant.

Civil No. 24-2721 SAG

|

Signed June 2, 2025

Synopsis

Background: Operators of event-planning company, who according to allegations in complaint were an individual and individual's Florida LLC, filed action in Maryland state court against owner of online marketplace after company's contact information was listed for seller with similar name on online marketplace, asserting claims for negligence, intentional infliction of emotional distress, and false light invasion of privacy. Following removal, owner moved to dismiss for lack of standing and for failure to state a claim.

Holdings: The District Court, Stephanie A. Gallagher, J., held that:

[1] amount in controversy exceeded \$75,000 threshold amount for district court to exercise diversity jurisdiction;

[2] individual's Maryland LLC, which had same name as individual's Florida LLC, lacked standing;

[3] Florida LLC lacked standing; and

[4] owner was immune under Communications Decency Act from claim for intentional infliction of emotional distress.

Motion granted.

Procedural Posture(s): Motion to Dismiss for Lack of Standing; Motion to Dismiss for Failure to State a Claim.

West Headnotes (22)

[1] **Federal Civil Procedure** 🔑 **Matters considered in general**

On a motion to dismiss, typically a court may not assess facts outside the complaint.

[2] **Federal Civil Procedure** 🔑 **Matters considered in general**

On a motion to dismiss, a district court may consider facts that are subject to judicial notice. *Fed. R. Evid. 201(b)(2)*.

1 Case that cites this headnote

[3] **Federal Civil Procedure** 🔑 **Construction of pleadings**

When a court considers relevant facts from the public record at the pleading stage, the court must construe such facts in the light most favorable to the plaintiffs.

[4] **Federal Courts** 🔑 **Evidence; Affidavits**

In determining whether it has jurisdiction, a district court may consider evidence outside the pleadings, including facts in a response opposing a motion to dismiss.

[5] **Removal of Cases** 🔑 **Allegations and prayers in pleadings**

Amount in controversy exceeded \$75,000 threshold amount for district court to exercise diversity jurisdiction following removal in action that operators of event-planning company brought against owner of online marketplace for negligence, intentional infliction of emotional distress, and false light invasion of privacy after company's information was allegedly listed on online marketplace for seller with similar name, though operators intended to remain in state

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court by seeking to cap damages at \$74,999.99 for negligence claim and for invasion-of-privacy claim, since one operator alleged two distinct forms of damage, namely, damage to business functioning based on negligence and damage to reputation from invasion of privacy. 28 U.S.C.A. § 1332.

[More cases on this issue](#)

[6] **Federal Courts** 🔑 [Aggregation or Joinder of Claims or Demands](#)

When a single plaintiff brings multiple claims with distinct damages against a single defendant, the court may aggregate those damages to determine the amount in controversy for purposes of diversity jurisdiction. 28 U.S.C.A. § 1332.

[7] **Federal Civil Procedure** 🔑 [Pleading, Defects In, in General](#)

A defendant is permitted to test the legal sufficiency of a complaint by way of a motion to dismiss.

[8] **Federal Courts** 🔑 [Presumptions and burden of proof](#)

Under rule governing dismissal for lack of subject-matter jurisdiction, the plaintiff bears the burden of establishing subject-matter jurisdiction. Fed. R. Civ. P. 12(b)(1).

[9] **Federal Civil Procedure** 🔑 [In general; injury or interest](#)

One part of establishing subject-matter jurisdiction is establishing standing, the legal capacity to sue.

[10] **Federal Civil Procedure** 🔑 [In general; injury or interest](#)

Federal Civil Procedure 🔑 [Causation; redressability](#)

To establish standing, the plaintiff must plausibly allege an injury-in-fact caused by the defendant that is redressable by the court.

[11] **Federal Courts** 🔑 [Dismissal or other disposition](#)

If a court determines that a plaintiff has no injury-in-fact, the court must dismiss the action for lack of subject-matter jurisdiction based on lack of standing. Fed. R. Civ. P. 12(h)(3).

[12] **Federal Civil Procedure** 🔑 [Nature and purpose](#)

The purpose of the rule requiring a complaint to contain a short and plain statement of the claim showing that the pleader is entitled to relief is to provide the defendant with fair notice of the claims and the grounds for entitlement to relief. Fed. R. Civ. P. 8(a)(2).

[13] **Federal Civil Procedure** 🔑 [Construction of pleadings](#)

Federal Civil Procedure 🔑 [Matters deemed admitted; acceptance as true of allegations in complaint](#)

In reviewing a motion to dismiss for failure to state a claim, a court must accept as true all of the factual allegations contained in the complaint and must draw all reasonable inferences from those facts in favor of the plaintiff. Fed. R. Civ. P. 12(b)(6).

[14] **Federal Civil Procedure** 🔑 [Insufficiency in general](#)

If a complaint that is the subject of a motion to dismiss provides no more than labels and conclusions or a formulaic recitation of the elements of a cause of action, it is insufficient to

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state a claim upon which relief can be granted.
[Fed. R. Civ. P. 12\(b\)\(6\)](#).

[15] **Corporations and Business**

Organizations 🔑 [Persons entitled to sue; standing](#)

Individual's Maryland LLC, which had same name as individual's Florida LLC, lacked standing in action in which complaint's caption listed individual and name used by both LLCs as plaintiffs without indicating which LLC was co-plaintiff in action, which asserted claims against owner of online marketplace for negligence, intentional infliction of emotional distress, and false light invasion of privacy and which alleged that contact information of event-planning company operated by plaintiffs was listed for seller with similar name on online marketplace; complaint alleged that individual and Florida LLC operated company together, Maryland LLC did not exist when action was filed, and Maryland LLC could not have suffered injury-in-fact given that it did not exist when harms allegedly occurred.

[More cases on this issue](#)

[16] **Federal Civil Procedure** 🔑 [Pro Se or Lay Pleadings](#)

Federal Civil Procedure 🔑 [Parties, Defects as to](#)

Even pro se complaints, which are liberally construed, may be dismissed for failing to set forth which parties are plaintiffs by matching a complaint's caption to the complaint's body.

[17] **Corporations and Business**

Organizations 🔑 [Persons entitled to sue; standing](#)

Florida LLC, which allegedly was an operator of event-planning company in Maryland, lacked standing to bring action against owner of online marketplace for negligence, intentional infliction

of emotional distress, and false light invasion of privacy regarding injuries that company allegedly sustained in Maryland when its contact information was listed for seller with similar name on marketplace, even if LLC had operated company in Maryland; LLC had never registered as out-of-state company in Maryland and had no right to do business in state, and LLC was administratively dissolved in Florida when alleged events giving rise to action occurred. Md. Code Ann., [Corps. & Ass'ns § 7-203\(a\)](#).

[More cases on this issue](#)

[18] **Telecommunications** 🔑 [Privilege or immunity](#)

The Communications Decency Act of 1996 grants immunity from liability to (1) interactive computer services (2) for speech posted on the service by a third party (3) for claims that seek to treat the service as if it published the third party's speech. Communications Act of 1934 [§ 230](#), 47 U.S.C.A. [§ 230\(c\)\(1\)](#).

[19] **Infliction of Emotional Distress** 🔑 [Immunity](#)

Telecommunications 🔑 [Privilege or immunity](#)

Owner of online marketplace was immune under Communications Decency Act from claim of operator of event-planning company for intentional infliction of emotional distress allegedly arising from listing of company's contact information on marketplace for similarly named third-party seller, where marketplace was online platform on which third parties marketed and sold goods, alleged harm was based on misinformation provided by third party, and claim treated owner as if it published the third-party speech. Communications Act of 1934 [§ 230](#), 47 U.S.C.A. [§ 230\(c\)\(1\)](#).

[1 Case that cites this headnote](#)

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[20] **Infliction of Emotional Distress** 🔑 Immunity

Telecommunications 🔑 Privilege or immunity

Owner of online marketplace was “interactive computer service,” as required for owner to have immunity under Communications Decency Act from claim of operator of event-planning company for intentional infliction of emotional distress allegedly arising from listing of company's contact information on marketplace for similarly named third-party seller; marketplace was online platform on which third parties marketed and sold goods, and owner acted as passive host. Communications Act of 1934 § 230, 47 U.S.C.A. § 230(c)(1).

[More cases on this issue](#)

[21] **Telecommunications** 🔑 Privilege or immunity

A website that passively hosts third-party speech qualifies as an “interactive computer service” for purposes of Communications Decency Act immunity. Communications Act of 1934 § 230, 47 U.S.C.A. §§ 230(c)(1), 230(f)(2).

[22] **Telecommunications** 🔑 Privilege or immunity

Communication Decency Act bars lawsuits seeking to hold a service provider liable for its exercise of a publisher's traditional editorial functions, such as deciding whether to publish, withdraw, postpone or alter content. Communications Act of 1934 § 230, 47 U.S.C.A. § 230.

[1 Case that cites this headnote](#)

Attorneys and Law Firms

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Patrick John Curran, Davis Wright Tremaine LLP, Washington, DC, for Defendant.

MEMORANDUM OPINION

STEPHANIE A. GALLAGHER, UNITED STATES DISTRICT JUDGE

*62 Maryland resident Karen Hillman and “Karen Paige Designs, LLC,” (collectively “Plaintiffs”) sued Amazon.com Services LLC in Maryland state court, alleging three torts: negligence, intentional infliction of emotional distress, and false light invasion of privacy. ECF 6. Amazon removed the case to this Court and moved to dismiss. ECF 13. The motion is fully briefed. ECF 13-1, 17, 19. No hearing is necessary. L.R. 105.6 (D. Md. 2023). For the reasons below, Amazon's motion to dismiss will be granted, and Plaintiffs’ complaint will be dismissed without prejudice.

I. Background

A. The Plaintiffs and Related Entities

Cozy Castle Events (“Events” or “CCE”) is an event-planning company with an event space in Frederick, Maryland. Compl. ¶ 6. It has operated since 2010. *Id.* ¶ 8. Events’ ownership is unclear. *See* Compl. ¶¶ 1–2, 6–8 (stating that “Plaintiffs” operate Events, but not specifying Events’ ownership). Also unclear is Events’ status in this case. Notably, Events is not a named plaintiff, despite the complaint occasionally referring to it as such and seeking damages for CCE in Counts One and Three. *Id.* at 5. (“Plaintiff CCE demands damages”).

[1] [2] [3] In April 2015, about five years after Events began its operations, Hillman incorporated “Karen Paige Designs, LLC” in Florida (“KPD-FL”). Mot. to Dismiss, Ex. B, ECF 13-4 (showing public record of KPD-FL's incorporation in Florida on April 13, 2015).¹ About seven years later, *63 on September 23, 2022, Florida's Secretary of State administratively dissolved KPD-FL. *See* Fla. Dep't

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of State, Div. of Corps., SunBiz.org, <https://perma.cc/F28C-E82Q> (last visited June 2, 2025). KPD-FL remedied its dissolution in Florida and was reinstated on June 26, 2024, one day before it and Hillman filed their state-court complaint in this matter. *See id.*; ECF 6 (bearing an e-filing stamp on the state-court complaint for June 27, 2024). Thus, between September 2022 and June 2024, KPD-FL, as an administratively dissolved Florida company, could “only carry on activities necessary to wind up its activities and affairs, liquidate and distribute its assets, and notify claimants.” [Fla. Stat. § 605.0714\(5\)](#). It could not conduct business, either in Florida or anywhere else. *See id.* As to its presence in Maryland, KPD-FL has never registered as an out-of-state company doing business.

Presently, Hillman also has a Maryland-based company named “Karen Paige Designs, L.L.C.” *See* Mot. to Dismiss, Ex. A, ECF 13-3. Although they share a name, the two companies are not the same: KPD-FL is incorporated in Florida and KPD-MD was separately incorporated in Maryland. *Id.* (listing KPD-MD’s address as 10034 Old National Pike, Ijamsville, Maryland 21754). Hillman incorporated KPD-MD shortly *after* filing her complaint in this case. *Compare* ECF 6 (bearing an e-filing stamp on the state-court complaint for June 27, 2024, at 1:18 p.m.), *with* ECF 13-3 (bearing the “Filing Date and Time” in the top-left corner as June 27, 2024, at 5:39 p.m.).

Complicating the identification of the plaintiff here, the complaint’s caption lists the address for “Karen Paige Designs, LLC” as 10034 Old National Pike, Ijamsville, Maryland 21754. Compl. at 1. But that is the address of KPD-MD, not KPD-FL. *Compare* ECF 13-3, *with* ECF 13-4 (KPD-FL’s registration with a Florida address). The body of the complaint, however, contradicts the caption, stating that “Karen Paige Designs, LLC” is a Florida-based company. Compl. ¶ 2. Because KPD-MD did not exist at the time of the alleged harms, the Court identifies the plaintiff “Karen Paige Designs, LLC” as KPD-FL, not the Maryland-based company by the same name.

[4] Plaintiffs KPD-FL and Hillman allege that they have operated Events together. Compl. ¶ 6; Resp. in Opp’n, ECF 17 at 2.² Yet, as stated, KPD-FL has never registered to do business in Maryland. *See* [Md. Code, Corps. & Ass’ns § 4A-1009](#) (defining “doing business” for out-of-state

companies); *id.* § 7-202(a) (requiring out-of-state companies to register with Maryland’s Department of Assessments and Taxation “before doing any interstate or foreign business in [Maryland]”); *id.* § 7-203(a) (same, except for *intrastate* business).

B. The Allegations

In January 2023, Hillman started receiving emails and calls from people complaining about Cozy Castle Furniture (“Furniture”). *See id.* ¶¶ 9, 13, 26. Furniture, though, is unrelated to Cozy Castle Events and Plaintiffs. Furniture is a retailer on Amazon’s online marketplace. *See id.* ¶ 10. On its Amazon page, “[Furniture] or someone” listed Plaintiffs’ contact information *64 as if it were Furniture’s. *See id.* ¶ 12. That incorrect information led to Hillman receiving numerous calls and emails complaining about Furniture and its products. The complaints Hillman received about Furniture numbered in the hundreds per day, beginning in February 2023. *See id.* ¶¶ 13–14. The exceptional volume of complaints prevented Plaintiffs from managing Events and caused Events to “not operat[e] as a business from February 2023 until November 2023.” *Id.* ¶¶ 15, 18. The complaints also disrupted Hillman’s personal life, inducing “anxiety, depression, embarrassment, fear, and humiliation.” *Id.* ¶¶ 16–17.

Hillman spoke to the complainants directly, “hundreds” of whom told her that, on Amazon, her and Events’ contact information was listed for Furniture. *See id.* ¶¶ 21–22. To resolve the error, Hillman called Amazon at least 15 times and wrote Amazon at least 11 times between January and September 2023. *See id.* ¶¶ 19–20, 24. On September 6, 2023, Hillman spoke to an Amazon representative about the error, but the representative told her that Amazon “did not have the tools to fix it.” *Id.* ¶ 25 (quoting the Amazon representative).

Hillman alleges that Amazon knew of the error since late January 2023, when she first called. *Id.* ¶ 26. Yet Amazon did nothing to address the problem until nearly 10 months later, around October 2023, when it finally corrected Furniture’s contact information. *See id.* ¶¶ 26–27.

[5] [6] The myriad complaints allegedly resulted in Hillman’s emotional distress as well as irreparable damage to Events’ reputation. *See id.* ¶¶ 29–32.³

II. Legal Standards

[7] A defendant is permitted to test the legal sufficiency of a complaint by way of a motion to dismiss. *See, e.g., In re Birmingham*, 846 F.3d 88, 92 (4th Cir. 2017); *Goines*, 822 F.3d at 165–66. Here, Amazon cites two bases for dismissal: Rule 12(b)(1) and 12(b)(6).

[8] [9] [10] [11] Rule 12(b)(1) governs situations when the Court lacks subject-matter jurisdiction. *See Khourey v. Meserve*, 268 F. Supp. 2d 600, 606 (D. Md. 2003), *aff'd*, 85 F. App'x 960 (4th Cir. 2004). Under that rule, the plaintiff bears the burden of establishing subject-matter jurisdiction. *See Demetres v. E.W. Constr., Inc.*, 776 F.3d 271, 272 (4th Cir. 2015). One part of establishing subject-matter jurisdiction is establishing standing, the legal capacity to sue. *See Lujan v. Defs. of Wildlife*, 504 U.S. 555, 560–61, 112 S.Ct. 2130, 119 L.Ed.2d 351 (1992). To establish standing, the plaintiff must plausibly allege an injury-in-fact caused by the defendant that is redressable by the court. *See, e.g., Tyler v. Hennepin Cnty.*, 598 U.S. 631, 143 S.Ct. 1369, 215 L.Ed.2d 564 (2023) (citing *65 *Lujan*, 504 U.S. at 560–61, 112 S.Ct. 2130). To show it has suffered an injury-in-fact, the plaintiff must show “an invasion of a legally protected interest which is (a) concrete and particularized and (b) actual or imminent, not conjectural or hypothetical.” *Lujan*, 504 U.S. at 560, 112 S.Ct. 2130 (cleaned up). If the court determines that the plaintiff has no injury-in-fact, the court must dismiss the action. *See Fed. R. Civ. P. 12(h)(3)*.

[12] [13] [14] A Rule 12(b)(6) motion constitutes an assertion by a defendant that, even if the facts alleged by a plaintiff are true, the complaint fails as a matter of law “to state a claim upon which relief can be granted.” *Fed. R. Civ. P. 12(b)(6)*. Whether a complaint states a claim for relief is assessed by reference to the pleading requirements of Rule 8(a)(2), which provides that a complaint must contain a “short and plain statement of the claim showing that the pleader is entitled to relief.” *Fed. R. Civ. P. 8(a)(2)*. The purpose of the rule is to provide the defendant with “fair notice” of the claims and the “grounds” for entitlement to relief. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555–56, 127 S.Ct. 1955, 167 L.Ed.2d 929 (2007). In reviewing a Rule 12(b)(6) motion, a court “must accept as true all of the factual allegations contained in the complaint” and must “draw all reasonable

inferences [from those facts] in favor of the plaintiff.” *E.I. du Pont de Nemours & Co. v. Kolon Indus., Inc.*, 637 F.3d 435, 440 (4th Cir. 2011) (citations omitted); *Houck v. Substitute Tr. Servs., Inc.*, 791 F.3d 473, 484 (4th Cir. 2015). But if a complaint provides no more than “labels and conclusions” or “a formulaic recitation of the elements of a cause of action,” it is insufficient. *Twombly*, 550 U.S. at 555, 127 S.Ct. 1955.

III. Analysis

A. Lack of Subject-Matter Jurisdiction

This Court notes that none of the three counts in the Complaint purport to seek relief on behalf of “Karen Paige Designs, LLC.” Counts One and Three seek relief on behalf of “CCE,” which as noted above, is not a named Plaintiff. Count Two seeks relief on behalf of Hillman alone. Nevertheless, because “Karen Paige Designs, LLC” is listed in the caption as a Plaintiff, this Court will first address why neither KPD-MD nor KPD-FL has standing to sue.

1. Standing for KPD-MD

[15] [16] KPD-MD, as Amazon points out, has no standing here. First, it is not KPD-FL, even though it has the same name. Second, KPD-MD did not exist when KPD-FL and Hillman filed this lawsuit. So third, KPD-MD certainly did not exist when the harms allegedly occurred in 2023. It cannot have suffered injury-in-fact when it did not exist.⁴

*66 2. Standing for KPD-FL

An out-of-state company has no right to do business in Maryland until it registers with the State Department of Assessments and Taxation. *See Md. Code, Corps. & Ass'ns § 7-203(a)*; *see also Guy Named Moe, LLC v. Chipotle Mexican Grill, LLC*, 447 Md. 425, 135 A.3d 492, 494–95, 497 (2016) (noting that a plaintiff’s “right to do business in Maryland was forfeited” because it had not renewed its registration with Maryland’s Department of Assessments and Taxation).

[17] In 2023, KPD-FL was not registered with Maryland’s Department of Assessments and Taxation as an out-of-state company. *See* ECF 13-3 (showing that a company with the same name as KPD filed articles of incorporation in Maryland on June 27, 2024); *Business Entity Search*, Md. Bus. Express, <https://egov.maryland.gov/BusinessExpress/>

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EntitySearch/Business (in the field “Business Name” type “Karen Paige,” then click “Search”; the only business found is “Karen Paige Designs, L.L.C.,” and it is registered as a “DOMESTIC LLC,” with its principal office in Maryland; no foreign company is listed). Indeed, KPD-FL has *never* registered as an out-of-state company in Maryland. Consequently, KPD-FL has never had the “right to do business in Maryland.” See *Guy Named Moe*, 135 A.3d at 497; cf. *Trinity Outdoor, L.L.C. v. City of Rockville*, No. 03-cv-2372 (JFM), 2004 WL 78054, at *2 (D. Md. Jan. 15, 2004), *aff’d*, 123 F. App’x 101 (4th Cir. 2005) (finding that an unregistered company could not establish standing because it had no right on which to infringe). And, in fact, in 2023 when the events described in the complaint occurred, KPD-FL was administratively dissolved in Florida and had no right to do business at all.

Plaintiffs allege that KPD-FL has operated Events since 2015. ECF 17 at 2. But if KPD-FL operated Events in Maryland, it did so without registering as required by law. KPD-FL cannot claim infringement of a right it never had and has not adequately pleaded facts to establish that it suffered an injury-in-fact as a result of injuries to Events in Maryland. Accordingly, the Court will grant Amazon’s motion and will dismiss the claims brought by “Karen Paige Designs, LLC” for lack of jurisdiction.

B. Failure to State a Claim

In the remaining count, Count Two, Hillman alleges intentional infliction of emotional distress. But Hillman has not stated a claim for which relief can be granted.

[18] The Communications Decency Act of 1996 states that “[n]o provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.” 47 U.S.C. § 230(c)(1). Thus, the law grants immunity from liability to (1) interactive computer services (2) for speech posted on the service by a third party (3) for claims that seek to treat the service as if it published the third party’s speech. See *Nemet Chevrolet, Ltd. v. Consumeraffairs.com, Inc.*, 591 F.3d 250, 254 (4th Cir. 2009); *Zeran v. Am. Online, Inc.*, 129 F.3d 327, 328 (4th Cir. 1997) (holding that § 230 “plainly immunizes computer service providers like [Amazon] from liability for information that originates with third parties”); *Erie Ins. Co. v. Amazon.com, Inc.*, 925 F.3d 135, 139 (4th Cir. 2019) (“[T]o

implicate the immunity of § 230(c)(1), a claim must be based on the interactive computer service provider’s publication of a third party’s speech.”). Section 230 immunity also applies to state-law claims, including common-law torts. See 47 U.S.C. § 230(e)(3) (“No cause of action may be brought and no liability may be imposed under any *67 State or local law that is inconsistent with this section.”).

[19] [20] [21] Because Amazon meets the three elements of § 230, Amazon is immune from Hillman’s claim for intentional infliction of emotional distress. First, Amazon is an interactive computer service. An “interactive computer service” is “any information service, system, or access software provider that provides or enables computer access by multiple users to a computer server, including specifically a service or system that provides access to the Internet.” 47 U.S.C. § 230(f)(2). A website that passively hosts third-party speech qualifies as an interactive computer service. *Nemet Chevrolet*, 591 F.3d at 254 (“State-law plaintiffs may hold liable the person who creates or develops unlawful content, but not the interactive computer service provider who merely enables that content to be posted online.”). As alleged, Amazon is an online platform on which third parties, like Furniture, market and sell goods. See Compl. ¶ 4 (“Amazon provides a sales platform for resellers and sellers of various products in the global commercial marketplace.”). In this third-party marketplace, Amazon acts as a passive host. See *id.* It is, thus, an interactive computer service. *Ratermann v. Pierre Fabre USA, Inc.*, 651 F. Supp. 3d 657, 666 (S.D.N.Y. 2023); see *McDonald v. LG Elecs. USA, Inc.*, 219 F. Supp. 3d 533, 536 (D. Md. 2016) (noting no dispute “that Amazon is an ‘interactive computer service’ under Section 230”).

Second, Plaintiffs’ claim for intentional infliction of emotional distress depends on the content provided by a third party. Taking Plaintiffs’ allegations as true, “[Furniture] or someone listed Plaintiffs’ contact information for customer complaints” on Amazon. Compl. ¶ 12. That is, someone—but not Amazon—listed false information about Plaintiffs. The misinformation was “provided by another information content provider.” See 47 U.S.C. § 230(c)(1).

[22] Third and finally, Plaintiffs seek to treat Amazon as if it published the third-party speech. Plaintiffs allege that Amazon listed inaccurate information on its website, Compl. ¶¶ 21–22, and that it failed to correct that inaccuracy, *id.* ¶ 26. Plaintiffs allege that, because of Amazon’s failure “to correct

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the incorrect information,” *id.* ¶ 42, Hillman was “actively damaged and harmed,” *id.* ¶ 43. Yet “lawsuits seeking to hold a service provider liable for its exercise of a publisher’s traditional editorial functions—such as deciding whether to publish, withdraw, postpone or alter content—are barred.” *Zeran*, 129 F.3d at 330; accord *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1103 (9th Cir. 2009) (“[R]emoving content is something publishers do, and to impose liability on the basis of such conduct necessarily involves treating the liable party as a publisher of the content it failed to remove.”).

Hillman’s claim is thus barred by § 230 immunity.

IV. Conclusion

In sum, Plaintiff “Karen Paige Designs, LLC” lacks standing to bring Counts One and Three, and Amazon has adequately shown that § 230 grants Amazon immunity from Hillman’s claim in Count Two. The Court, therefore, will **GRANT** Amazon’s motion to dismiss and **DISMISS** Plaintiffs’ complaint without prejudice. A separate order follows.

All Citations

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Footnotes

- 1 On a motion to dismiss, typically a court may not assess facts outside the complaint. See *Goines v. Valley Cmty. Servs. Bd.*, 822 F.3d 159, 165–66 (4th Cir. 2016). But a district court may consider facts that are subject to judicial notice. See *Zak v. Chelsea Therapeutics Int’l, Ltd.*, 780 F.3d 597, 607 (4th Cir. 2015). To be open to judicial notice, a fact must “not [be] subject to reasonable dispute because it ... can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned.” *Fed. R. Evid.* 201(b)(2). “[W]hen a court considers relevant facts from the public record at the pleading stage, the court must construe such facts in the light most favorable to the plaintiffs.” *Zak*, 780 F.3d at 607 (citation omitted).
- 2 In determining whether it has jurisdiction, a district court “may consider evidence outside the pleadings,” including facts in a response opposing a motion to dismiss. See *Richmond, Fredericksburg & Potomac R. Co. v. United States*, 945 F.2d 765, 768 (4th Cir. 1991) (citations omitted).
- 3 The Court has diversity jurisdiction over this matter because the parties are citizens of different States and the amount in controversy exceeds \$75,000. See 28 U.S.C. § 1332. Plaintiffs intended to remain in state court. See Compl. ¶ 31 (“To keep within the state court limits, damages are capped at \$74,999.99.”). But KPD-FL alleges two distinct forms of damage that sum to more than \$75,000: Count One alleges negligence damaging KPD-FL’s business functioning. *Id.* ¶¶ 37, 39. Count Three alleges invasion of privacy false light damaging KPD-FL’s reputation. *Id.* ¶ 51. Both counts seek \$74,999.99 for their respective damages. See *id.* at 5, 7. When a single plaintiff brings multiple claims with distinct damages against a single defendant, the court may aggregate those damages to determine the amount in controversy for purposes of diversity jurisdiction. Cf. *Shanaghan v. Cahill*, 58 F.3d 106, 109 (4th Cir. 1995) (citation omitted) (noting that “[a] plaintiff may aggregate smaller claims in order to reach this threshold”). Thus, KPD-FL’s damages to its business function and to its reputation sum to exceed \$75,000.
- 4 If Plaintiffs amend their pleading, they should clarify which parties are plaintiffs by matching the complaint’s caption to its body. Even pro se complaints, which are liberally construed, may be dismissed for failing at this most basic task—and in those cases, the discrepancy is typically in the naming of the *defendants*, not in the plaintiffs naming themselves. Cf. *Smith v. Morris*, No. 18-3289, 2022 WL 110823, at *1–3 (D. Kan. Jan. 12, 2022) (dismissing a complaint with prejudice after the court had repeatedly instructed the pro se plaintiff to reconcile the discrepancy in naming of the defendants between the caption and body of the complaint); *Nunez v. Yolo Cnty. Jail*, No. 08-cv-00669, 2009 WL 2171894, at *2 (E.D. Cal. July 21, 2009) (instructing a pro se plaintiff to correct the discrepancy in naming of defendants between the caption and body of the complaint); *Lindsay v. Owens Loan*, No. 08-cv-12526, 2008 WL 2795944, at *1 n.1 (E.D. Mich. July 18, 2008) (deferring to the complaint’s caption to determine the spelling of the pro se plaintiff’s name, despite another filing by the plaintiff in which he spelled his name differently).

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